



Instructions for Form I-956H, Bona Fides of Persons Involved with Regional Center Program

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-956H
OMB No. 1615-0159
Expires 03/31/2027

What is the Purpose of Form I-956H?

Form I-956H, Bona Fides of Persons Involved with Regional Center Program, must be completed by each person involved with a regional center, new commercial enterprise (NCE), or affiliated job-creating entity (JCE) to attest to their eligibility to be involved with the EB-5 entity. A person involved with a JCE that is not an affiliated JCE may, at the Secretary's discretion, be required to complete Form I-956H.

A person is involved with a regional center, NCE, or JCE if the person is, directly or indirectly, in a position of substantive authority to make operational or managerial decisions over pooling, securitization, investment, release, acceptance, or control or use of any funding. A person may be in a position of substantive authority if they serve as a principal, a representative, an administrator, an owner, an officer, a board member, a manager, an executive, a general partner, a fiduciary, an agent, or in a similar position at the regional center, NCE, or JCE, respectively.

Each person must complete a Form I-956H that identifies each entity with which they are involved for submission with any related form, as applicable.

Each person completing a Supplement Form I-956H must answer all questions as indicated on the supplement.

When Must the Form I-956H be Filed?

Each person involved with the regional center must complete Form I-956H to be submitted with the Form I-956, Application for Regional Center Designation.

A person must complete Form I-956H to be submitted with the Form I-956 amendment if the regional center undergoes any change or other arrangement that results in the person not previously subject to the requirements under the Immigration and Nationality Act (INA) section 203(b)(5)(H) becoming involved with the regional center.

Each person involved with an NCE and/or an affiliated JCE must complete Form I-956H to be submitted along Form I-956F, Application for Approval of Investment in a Commercial Enterprise. A person involved with a JCE that is not an affiliated JCE may, at the Secretary's discretion, be required to complete Form I-956H for submission to U.S. Citizenship and Immigration Services (USCIS).

A person involved with the regional center who previously filed Form I-956H with the Form I-956 must also file Form I-956H with the Form I-956F if that person is involved with the NCE or JCE.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your form. USCIS will not accept a stamped or typewritten name in place of a signature on this form. If you are under 14 years of age, your parent or legal guardian may sign the form on your behalf. A legal guardian may also sign for a mentally incompetent person. If the form is not signed, or if the requisite signature is not valid, we will reject the form. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a form for adjudication and determines that it has a deficient signature, USCIS may reject or deny the underlying application.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your form, you must submit all evidence and supporting documents listed in the **Specific Instructions** and **What Evidence Should You Submit** sections of these Instructions.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the form;
2. You reviewed and understood all of the information contained in, and submitted with, your form; and
3. All of the information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your form.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs your original.

NOTE: If you submit original documents when not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must include their signature, printed name, the signature date, and their contact information.

USCIS Contact Center. For additional information on the form and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-956H

1. Type or print legibly in black ink.

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2. If you need extra space to complete any item within this form, use the space provided in **Part 9. Additional Information** or attach a separate sheet of paper. Type or print the name of the regional center entity at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
 3. Answer all questions fully and accurately. If a question does not apply to you, type or print "N/A," unless otherwise directed. If your answer to a question which requires a numeric response is zero or none, type or print "None," unless otherwise directed.
 4. **USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Specific Instructions

Part 1. Filing Type

Item Number 1. Filing Type. Select the appropriate box to indicate whether you are submitting an initial or additional filing. If you have not previously submitted a Form I-956H for involvement with any entity or related Form I-956 or Form I-956F filing in the past, select initial filing and skip to **Part 2**. If you have previously filed a Form I-956H for involvement with any entity or related Form I-956 or Form I-956F filing in the past, even if different from your involvement with the entity identified in **Part 2.**, select additional filing.

Item Number 2. - 3. Filing Type. If the Form I-956H you are filing is an additional filing, provide the receipt number of your most recent previous Form I-956H filing. Also, indicate whether your answers to **Parts 3., 4., and 5.** are the same as in the previous Form I-956H filing you identified. If your answers to these parts are the same as your previous filing, your answers to those parts will be incorporated into this filing by reference and you may skip answering the items and parts indicated. You must still complete all other parts of this form.

Part 2. Information About the EB-5 Entity and Your Involvement

Provide only the applicable information in each table for the entity(ies) with which you are involved and your role in the entity.

Part 3. Information About the Person Involved with Regional Center Program

If the person is an individual, answer **Items Numbers 1. - 9.** For organizations, answer **Items Numbers 10. - 14.**

Item Numbers 1. - 2. Name of the Individual. Provide the full legal name, including any alias, maiden name, and/or nickname of the person submitting the form.

Item Number 3. Date of Birth. Provide the date of birth in mm/dd/yyyy of the person.

Item Number 4. Country of Birth. Provide the country of birth for the person.

Item Number 5. Country(ies) of Citizenship or Nationality. Provide the country(ies) of citizenship for the person current and relinquished. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print "stateless" and provide an explanation in **Part 9. Additional Information.**

Item Number 6. Passport Number(s) and Countries. Provide the passport number(s) of all country(ies) provided in Item Number 5.

Item Number 7. If the person is not a U.S. citizen, indicate whether the person is a U.S. national or lawful permanent resident (LPR).

Item Number 8. Alien Registration Number (A-Number) (if any). If person is an LPR, provide the LPR's A-number.

Item Number 9. U.S. Social Security Number. Provide the U.S. Social Security number for the person, if any.

Item Number 10. - 14. Organizational Information. If person is an organization, provide the organization name, the date the organization was established in mm/dd/yyyy format, the U.S. state or territory where the organization was established, and the Federal Employer Identification Number of the regional center entity.

Item Numbers 15. Person's Mailing Address. Provide the address where the person can receive mail.

Item Numbers 16. Person's Contact Information. Provide the person's current telephone number and email address (if any).

**We recommend that you print or save a copy of your completed form
for your records.**

What Evidence Should You Submit?

You must submit all evidence requested in these Instructions with your form. If you fail to submit required evidence, USCIS may reject or deny your form in accordance with 8 CFR 103.2(b)(1) and these Instructions. For lawful permanent residents, provide a copy of the LPR card.

Where To File?

Please see our website at www.uscis.gov/I-956H for the most current information about where to file this form.

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

You must have a United States address to file this form.

Initial Processing. Once USCIS accepts your form, we will check it for completeness. If you do not properly complete this form, you will not establish a basis for your eligibility and we may reject or deny the underlying application.

Requests for More Information. USCIS may request that you provide more information or evidence to support your submission. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it no longer needed.

USCIS Forms and Instructions

To ensure you are using the latest version of this form, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-956H, we will deny the underlying Form I-956 and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on this form, and the associated evidence, is collected under the Immigration and Nationality Act, sections 101, 103, 203, 204, 216A, and 245 (as amended) and the EB-5 Reform and Integrity Act of 2022, Div. BB of the Consolidated Appropriations Act, 2022 (Pub. L. No. 117-103).

PURPOSE: The primary purpose for collecting the requested information on this form is to determine the bona fides of persons involved with the regional center program, including whether the regional center has established eligibility for regional center designation or amended designation. Department of Homeland Security (DHS) will use the information you provide to grant or deny the regional center application or to take other appropriate action authorized by law. The identifying information requested on this form will allow DHS to perform standard background checks with law enforcement agencies. These background checks may reveal derogatory information that may result in denial of an application, termination of the regional center's designation, or other appropriate actions authorized by law.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, and any requested evidence, may delay a final decision or result in denial of an associated application or other appropriate actions authorized by law.

ROUTINE USES: DHS may share the information you provide on this application with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS-007 - Benefits Information System and DHS/USCIS-001 - Alien File, Index, and National File Tracking System of Records] which you can find at www.dhs.gov/privacy. DHS may also share the information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 1.47 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the form, preparing statements, attaching necessary documentation, and submitting the form. The collection of biometrics is estimated to require 1 hour 10 minutes. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0159. **Do not mail your completed Form I-956H to this address.**